

		The hearing on Plaintiff/Cross-Defendant Wenqiang (“Wayne”) Bian’s Special Motion to Strike (Anti-SLAPP) is CONTINUED to 08/18/2026 at 10:00 a.m. in Department C25. The Court invites Cross-Complainant LaTreill to submit a sur-reply of no more than five pages addressing Bian’s contention that LaTreill must meet a heightened “clear, unambiguous, and explicit” standard of proof in order to successfully oppose the motion. (See Reply at pp.4-6.) The brief shall be filed and served no later than 9 court days prior to the continued hearing date. No other briefing is allowed. Clerk to give notice.
113	Chisam vs. Yaz Limo and Parking Service 24-01439553	Motion for Summary Judgment and/or Adjudication Defendants Yaz Limo and Parking Service and Jacques Kazzi (“Defendants”) moves for an order granting summary judgment or adjudication in favor of Defendants on the first cause of action for negligence/negligence per se and second cause of action for negligent infliction of emotional distress. Plaintiffs Patricia Ann Chisam and Helene Francine Handler (“Plaintiffs”) oppose the motion. First, pursuant to the parties’ stipulation, the motion is MOOT as to the second cause of action for negligent infliction of emotional distress pursuant to the party’s stipulation and the First Amended Complaint. (See ROAs 81 and 84.) Moreover, the parties agree that, although the motion for summary judgment was filed as to the original complaint, the motion shall apply to the first cause of

		action for negligence/negligence per se as alleged in the operative First Amended Complaint. (ROA 81.) Moving to the merits of the issues remaining, the separate statement presents two issues as to the first cause of action for negligence/negligence per: (1) whether Defendants owed a duty to Plaintiff and (2) whether Defendants breached that duty. The Court finds that both are triable issues of fact. 1. Duty “The ‘legal duty’ of care may be of two general types: (a) the duty of a person to use ordinary care in activities from which harm might reasonably be anticipated [, or] (b) [a]n affirmative duty where the person occupies a particular relationship to others.” (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1016–1017, as modified (Sept. 22, 1997).) “In the first situation, he is not liable unless he is actively careless; in the second, he may be liable for failure to act affirmatively to prevent harm.” (Id., p. 1017.) “The special relationship of common carrier and passenger gives rise to the highest duty of care.” (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997).) Such duty is codified in Civil Code section 2100, which states that “[a] carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise to that end a reasonable degree of skill.” (Civ. Code, § 2100; McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997) [“While a carrier is not an insurer of its passenger's safety [citation], a carrier is required by statute “[to] use the utmost care and diligence for safe carriage, [to] provide everything necessary for that purpose, and [to] exercise
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		to that end a reasonable degree of skill” (Civ. Code, § 2100).”].) “This statutory duty is one of utmost care and the vigilance of a very cautious person.” (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997).) “Likewise, at common law, a common carrier is under a duty to its passengers to take reasonable action [¶] (a) to protect them against unreasonable risk of physical harm, and [¶] (b) to give them first aid after it knows or has reason to know that they are ill or injured, and to care for them until they can be cared for by others.” (Ibid. [internal quotations omitted].) Importantly, “this heightened degree of care is owed only while passengers are in transitu, and until they have safely departed the carrier's vehicle.” (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997).) Here, caselaw establishes that a carrier owes a heightened duty to its passengers until the passengers safely depart the carrier’s vehicle. The Court finds that whether Plaintiff was in transit or had safely departed Defendant’s vehicle is a triable issue of material fact. Plaintiffs presented evidence that Plaintiff Chisam had not yet exited the vehicle and that Defendant opened the door that Plaintiff Chisam fell out of; as such, Defendant would still owe a heightened duty of care to Plaintiff until Plaintiffs safety departed the carrier’s vehicle. Accordingly, Defendants argument that it is undisputed that they did not owe a heightened duty to Plaintiffs is without merit. Moreover, Defendants also owe an ordinary duty to “use ordinary care in activities from which harm might reasonably be anticipated,” such as opening a car door for another person who may be sleeping and/or intoxicated and leaning against the door that is to be opened.
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		The motion for summary judgment as to the first cause of action for negligence/negligence per se is DENIED as to Defendants' duty argument. 2. Breach Additionally, the Court finds that whether Defendants breached their ordinary and heightened duties owed to Plaintiff Chisam is a triable issue of material fact for the jury. The evidence before the Court creates a triable issue of fact as to how Plaintiff Chisam exited the vehicle and who opened the door that Plaintiff Chisam allegedly fell out of. As such, the Motion is DENIED as to Defendants' argument that they did not breach a duty owed to Plaintiff Chisam. The Court notes that the Complaint does not appear to allege that the first cause of action is brought by Plaintiff Handler. Rather, it appears that the first cause of action is only brought by Plaintiff Chisam, since the Complaint only alleges damages to Chisam in reference to this cause of action.¹ The Motion is DENIED. Plaintiff to give notice.
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